Aply legal risk review (October 12, 2026)

Draft risk review. Not legal advice. Prepared by an AI assistant. Have a licensed attorney review before publishing or submitting to an app store.

This is not legal advice and I am not an attorney. It is a risk audit and a set of drafts prepared by an AI assistant. Nobody can promise "no legal risk." Have a licensed attorney (ideally one who handles app, privacy and employment law) review everything here before Aply is public or submitted to an app store. Facts below were checked on the web in October 2026; several came from law-firm blogs and secondary sources, and each is marked with how solid it is.

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1. Where the jobs come from (the contract question)

Source	What its terms say	Confidence	Decision
Remotive	Using its listings "to collect signups or email addresses constitutes a breach"; must link back and name Remotive; asks that jobs not go to third-party sites; about 4 requests a day	From Remotive's own API page	**Off.** Aply collects emails, so using it would breach the terms. Needs written permission.
Jobicy	Credit Jobicy; "all application buttons" must go to the original job URL	From Jobicy's own page	**Link-out only**, never auto-submitted, and off by default
The Muse	Terms not found	Could not verify	**Off** until verified in writing
Greenhouse, Lever, Ashby public boards	Public feeds for employers' careers pages; no terms found covering third-party aggregation	Could not verify	**Link-out only** and **off by default**
Indeed, ZipRecruiter	No open API; partner programs only; Indeed's terms forbid keeping copies	Vendor blogs, not the companies	**Never used**
Partner employers	The employer gave the posting and agreed to receive applications	Your own agreements	**The only source that receives applications.** Each needs a recorded consent.

What this means: I can only call a job "authorized" if the employer gave it to you. Everything scraped or fed from a third party is either off or link-out only. Real third-party jobs need either written permission, a licensed job-data provider (for example the official USAJobs API for federal jobs, which is public data), or each employer's own opt-in.

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2. Sending applications

- **Emailing a company that never asked** can be unwelcome, can damage your sender reputation, and may implicate the CAN-SPAM Act (commercial email rules) depending on content. So Aply emails **only**

partner employers who opted in. For every other job the swipe sends the person to the employer's own page.

- **Submitting into an employer's applicant tracking system** needs a key issued by that employer (for example Greenhouse's job board application endpoint). Not available to third parties, so not done.
- **Server safeguards built:** the server decides who may receive an email (never the browser), strict address checks, one application per person per job, a daily cap, same-site requests only, and no cover note or message written for the recruiter.
- **First-use consent:** before the first application the app explains what is sent and to whom, and records agreement to the Terms and Privacy Policy.

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3. Privacy law

- **Triggers:** about 20 states have comprehensive privacy laws in 2026; thresholds vary (revenue, number of consumers, share of revenue from selling data). **Whether any apply to you yet depends on size and where users live. Ask your attorney.** Writing to the strictest common standard is the safe default, which is what the draft policy does.
- **Sensitive data:** work authorization can reveal citizenship or immigration status, which California and other states treat as sensitive. It is optional, used only inside applications the person sends, and never in scoring.
- **Not collected:** race, ethnicity, sex, age, religion, disability, veteran status, Social Security number, payment cards.
- **Children:** the app is 18+. If you want students under 18, COPPA (under 13) and state teen rules need a separate plan.
- **Rights process:** request by email, 45-day response, appeal path. You need a real privacy email and a way to find and delete a person's records on the server.

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4. AI and automated hiring rules

Current as of the sources found (verify each; they change often): New York City Local Law 144 (bias audit and candidate notice for employers using automated tools); Illinois' amended Human Rights Act (in effect January 1, 2026); California Civil Rights Council rules (October 1, 2025) and CCPA automated-decision rules (compliance dates 2026 and 2027); Colorado's replacement law effective January 1, 2027. These bind **employers** that use automated tools to evaluate candidates. Aply today uses a fixed scoring formula, not machine learning, and does not screen or reject anyone. The disclosure page says exactly that. **If you later add machine learning, resume ranking for employers, or auto-rejection, the analysis changes and you will likely need bias audits and notices.** Also keep the page true: it states the score weights and the 45% cap.

5. App Store and Google Play

- **Both stores** need a public privacy policy URL, and accurate privacy answers (Apple's App Privacy details, Google's Data safety form).
- **Account deletion:** if the app lets people create accounts, both stores require deletion inside the app (and, for Google, a web link). Aply has no accounts yet; building sign-in later triggers this.
- **Sign in with Apple:** needed if you offer other third-party sign-in (Google) in an iPhone app, unless an exception applies.
- **Payments:** subscriptions inside apps normally must use the store's billing (a commission of about 15 to 30%).
- **Apple's "minimum functionality" rule:** a thin wrapper around a website is a common reason for rejection. Plan a real app.
- I confirmed the account-deletion rules from older sources (2022 to 2023). **Read the current Apple App Review Guidelines and Google Play Developer Policy before submitting.**

6. What I could not verify

- Terms of The Muse, Greenhouse, Lever and Ashby (see section 1).
- Current text of Apple and Google policies.
- Which state laws apply to your business, your trademark availability for "Aply", and whether your applications qualify for any special treatment.
- Whether the "AI and matching" laws apply to you as a tool provider and not only to employers.

7. Before you publish

1. Fill every yellow blank in the legal pages (legal name, address, emails, state, retention period, DMCA agent). `node check.js` lists how many remain.
2. Get a real contact and privacy email, and register a DMCA agent with the U.S. Copyright Office.
3. Sign partner agreements (or at least written consent) with every employer that will receive applications.
4. Decide whether to get written permission or a license for any third-party job feed.
5. Have an attorney review the Terms, Privacy Policy, AI page and your partner agreement.
6. Add in-app deletion before launching accounts.

8. Questions for your attorney

- Which state privacy laws apply to us, and do we need to register as a business or data broker anywhere?

- Is our "applies on your behalf" flow acceptable under the employers' terms and under agency law (are we the applicant's agent)?
- Do we owe employers a contract before sending them applications, and what should it say?
- Should we limit liability or require arbitration, and is a class waiver enforceable in our state?
- If we add AI ranking or auto-apply, what audits and notices will we need?

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